SJR 25
FISCAL NOTE

Fiscal Review Committee
Tennessee General Assembly

January 18, 2025

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SUMMARY OF BILL: Proposes amending Article I, Section 15 of the Constitution of Tennessee by: 1) removing the right to bail when the proof is evident or the presumption great for the following offenses: a capital offense, an act of terrorism, second degree murder, aggravated rape of a child, aggravated rape, grave torture, and any other offense which, as of November 3, 2026, an offender could not be released prior to the expiration of at least 85 percent of the entire sentence imposed; and 2) requiring a judge's or magistrate's reasons for granting or denying bail be recorded.

FISCAL IMPACT:

LOCAL GOVERNMENT	
EXPENDITURES	**Mandatory**
FY26-27	$9,400
Article II, Section 24 of the Tennessee Constitution provides that: no law of general application shall impose increased expenditure requirements on cities or counties unless the General Assembly shall provide that the state share in the cost.	

Assumptions:

- Pursuant to Article XI, Section 3 of the Constitution of Tennessee, following passage by two successive General Assemblies, the proposed amendatory language is submitted to the people for a vote at the next general election in which a Governor is to be chosen.
- The proposed constitutional amendment language received its first General Assembly passage with Senate Joint Resolution 919 on April 26, 2024.
- Pursuant to Tenn. Code Ann. § 2-5-211(b), at least five days before the beginning of early voting, the county election commission shall either publish a sample ballot in a newspaper of general circulation or mail the sample ballot to every active registered voter.
- The requirement to add this constitutional amendment to the 2026 general election ballot will increase the size of the sample ballot to be published and subsequently increase printing costs.
- The one-time increase in local expenditures in FY26-27 for publishing costs is estimated to be $9,400 based upon the cost of recent publications incurred by the Secretary of State.

CERTIFICATION:

The information contained herein is true and correct to the best of my knowledge.



Bojan Savic, Executive Director